

Court No. - 21

Case :- WRIT - C No. - 6399 of 2023

Petitioner :- Smt. Roop Kanti Tripathi

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Prashant Saxena

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

The petitioner has challenged the recovery certificate dated 10.10.2022 issued by respondent no. 2 for recovery of electricity dues from the petitioner in a case of theft of electricity.

Sri Baleshwar Chaturvedi, learned counsel appearing on behalf of the respondent electricity department, on instruction, states that the impugned recovery has been withdrawn and that fresh order will be passed after providing opportunity of hearing to the petitioner.

Having regard to the stand of the respondent electricity department, the instant petition is disposed of with liberty to the respondents to pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

Order Date :- 24.2.2023

Arif

(Syed Qamar Hasan Rizvi,J.)

(Manoj Kumar Gupta,J.)